

1 HOUSE BILL NO. 179

2 INTRODUCED BY B. MITCHELL, L. SCHUBERT, M. NIKOLAKAKOS, M. VINTON, S. KELLY, E. ALBUS, K.
3 LOVE, A. NICASTRO, G. OVERSTREET, T. SHARP, E. BYRNE, R. GREGG, L. BENNETT, C. SCHOMER, V.
4 MOORE, C. COCHRAN, M. THIEL, T. MILLETT, E. TILLEMANN, D. ZOLNIKOV, M. BERTOGLIO, E. BUTTREY,
5 D. EMRICH, J. FULLER, B. GILLESPIE, S. GIST, C. HINKLE, R. MARSHALL, N. NICOL, A. REGIER, C.
6 SPRUNGER, G. LAMMERS, M. REGIER, M. YAKAWICH, S. FITZPATRICK, C. GLIMM, B. LER, R. MINER, J.
7 SCHILLINGER, G. OBLANDER, K. ZOLNIKOV, J. ETCHART, L. DEMING, F. NAVE, J. GILLETTE, B.
8 BARKER, L. BREWSTER, N. DURAM, T. FALK, P. FIELDER, G. KMETZ, T. MCGILLVRAY, B. MERCER, G.
9 PARRY, L. REKSTEN, K. SEEKINS-CROWE, J. TREBAS, Z. WIRTH, S. MANESS, K. BOGNER, S.
10 ESSMANN, J. HINKLE, J. DARLING, B. PHALEN

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12 A BILL FOR AN ACT ENTITLED: "AN ACT REVISING LAWS RELATED TO INACTIVE VOTER STATUS;
13 CLARIFYING THAT A VOTER ON THE INACTIVE LIST IS NOT MOVED TO THE ACTIVE LIST BY SIGNING
14 A PETITION FOR A STATEWIDE BALLOT ISSUE; AMENDING SECTION 13-2-222, MCA; AND PROVIDING
15 AN IMMEDIATE EFFECTIVE DATE."

16
17 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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19 **Section 1.** Section 13-2-222, MCA, is amended to read:

20 **"13-2-222. Reactivation of elector.** (1) The name of an elector must be moved by an election
21 administrator from the inactive list to the active list of a county if an elector meets the requirements for
22 registration provided in this chapter and:

23 (a) appears at a polling place in order to vote, submits an application to vote by absentee ballot in
24 a polling place election or mail ballot election, or votes in a mail ballot election conducted under Title 13,
25 chapter 19;

26 (b) notifies the county election administrator in writing of the elector's current residence, which
27 must be in that county; or

28 (c) completes a reactivation form provided by the county election administrator that provides

1 current address information in that county.

2 (2) The name of an elector may not be moved from the inactive list to the active list of a county by
3 the elector signing a petition for a statewide ballot issue.

4 ~~(2)~~(3) After an elector has complied with subsection (1)(a), (1)(b), or (1)(c), the county election
5 administrator shall place the elector's name on the active voting list for that county.

6 ~~(3)~~(4) An elector reactivated pursuant to subsection (1)(a) is a legally registered elector for purposes
7 of the election in which the elector voted."

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9 NEW SECTION. **Section 2. Effective date.** [This act] is effective on passage and approval.

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